TOWNSHIP OF LINCOLN
CLARE COUNTY
175 LAKE GEORGE AVE., P.O. BOX 239
LAKE GEORGE, MI 48633
phone: [989] 588-9841 website: www.lincolntwp.com

Lincoln Township Zoning Board of Appeals

Roger Carey – Chair ***Marshall Swanson*** – Vice-Chair
Cynthia Engelhardt – Secretary ***Tamara McCaslin*** - Member
Jerry Bridges – Township Board Liaison ***Ken Beougher*** - Alternate

Mary Abbott – Zoning Administrator ***Werner Mantei*** – Building Inspector
Deb Sherrod – Recording Secretary

Lincoln Township Zoning Board of Appeals
Regular Meeting
Wednesday, March 13, 2019

The meeting was called to order by Chair Carey at 7:00 pm.

Roll Call:
Present – Board Members: Chair Carey, Vice-Chair Swanson, Secretary Engelhardt
Staff: Zoning Administrator Abbott, Recording Secretary Sherrod
Absent – Bridges, McCaslin, Alternate Ken Beougher, excused
Public – 4

Approval of Agenda: Engelhardt made a motion to approve the agenda as presented; Swanson seconded. Motion carried with all in favor.

Remarks from Chair:
Chair Carey made the following introductory remark: "Before public comment let me clarify this meeting; we are not here for a variance hearing; we are here to decide whether the Zoning Administrator had valid cause for denial of a Zoning Permit."

Public Comment: Chair Carey remarked that during this session, any person may speak for up to 3 minutes, and speakers may only speak once.

Approval of Minutes:
Regular Meeting minutes of February 13, 2019 – It was moved by Engelhardt and seconded by Swanson to accept the minutes as written. The motion passed with all in favor.

Conflict of Interest Statement (Declare and Cite): No conflict of interest was stated by present members.

Application for Appeal: Application for Appeal was made on January 20, 2019, by Jeffery and Sandra Drew of 3870 Cottage Grove Court, Saginaw, MI 48604. In regard to a Zoning Permit Denial of a deck on property located in Lincoln Township, address, 1995 Bungo Tr. Oakdale Resort property number, 010-520-019-00

Public Notice: Notice of public hearing must be posted at least 15 days prior to the hearing. The text as published follows: The Lincoln Township Zoning Board of Appeals will conduct a Public Hearing on Wednesday, March 13, 2019, at 7:00 pm at the Lincoln Township Hall, 175 Lake George Avenue in Lake George, Michigan. The Zoning Board of Appeals will consider the appeal by Jeffery and Sandra Drew for a Zoning Permit Denial made on November 9, 2018, by the Zoning Administrator for property #010-520-019-00, Block #1, Parcel A, part of Lot #1 in Oakdale Resort on Lake George, located on Bungo Trail, Harrison, Michigan 48625. This appeal is to allow the construction of an Accessory Building. Written comments may be sent to the Lincoln Township Zoning Board of Appeals, P.O. Box 239, Lake George, MI 48633 or by e-mail: clm@lincolntwp.com and must be received by 5:00 p.m. on Tuesday, March 12, 2019.

The appeal request was posted in the *Clare County Cleaver* (Legal Section) February 21, 2019. Notifications were sent to all property owners within 300 feet of the property for the purpose of public comment being made to the ZBA. The public hearing information was also posted at the township hall.

Denial of Zoning Application:
The following is the Zoning Permit denial:

December 6, 2018

Denial of Zoning Application

RE: [T18N R5W SEC 16. LOT 19 STINER SUB. #010-321-001-03 IS ASSESSED WITH THE ABOVE; PART OF LOT 1 BLK 1 OAKDALE RESORT ON LAKE GEORGE DESCRIBED AS BEG N08 DEG 30'W 79.80 FT FROM SE COR OF LOT 1 TH CONT N08 DEG 30'W ALG E LOT L 39.90 FT TH S75 DEG 31'01"W 85.58 FT TO W LOT L TH S46 DEG 02'10"E 46.57 FT TH N75 DEG 31'01"E 57.06 FT BK TO POB. 2008 ASSESSED WITH.

DREW JEFFERY & SANDRA
3870 COTTAGE GROVE
SAGINAW, MI 48604

Dear Jeffery & Sandra Drew:

The recent submittal for a zoning application on the property located at Bungo Trial, Parcel Number: 010-520-019-00, PART OF LOT 1 BLK 1 OAKDALE RESORT ON LAKE GEORGE, which you are the owner of record, has been denied for the following provisions from Lincoln Township's Ordinance 44: Article 3 Zoning Districts, Regulations and Map: Table 3-4 and Footnotes for Table 3-4 Site Development Requirements 1, 5 (b, c), Article 20 Supplemental Provisions: Section 20.1 Purpose, Section 20.12 B and B (1).
These reasons are as follows:
Article 3: Table 3-4 and Footnotes: Front Yard Setbacks: 50 ft.
Article 3: Footnotes for Table 3-4 Site Development Requirements
1. Other Standards and Regulations:
All uses shall comply with the site development requirements in Table 3-4, unless specified otherwise by this Ordinance. See also Article 12 - Off-Street Parking and Loading, Article 13 - Landscaping and Screening, Article 14 - Environmental Protection, Article 15 - Access and Private Roads, Article 16 - Signs, Article 18 - Standards and Regulations for Specific Land Uses, and Article 20 - Supplemental Provisions (including provisions addressing accessory structures), and other Articles as applicable.
5. Front Yard Setback Measurements and Special Water Setbacks:
b. Waterfront Lot: In the case of a waterfront lot, the front yard shall be that yard adjacent to the water body and the front yard setback shall be measured from the ordinary high water mark or, where a shoreline wall is present, from the face of the shoreline wall.
c. Ordinary High Water Mark Setback: In no case shall a structure be located closer than fifty (50) feet from the ordinary high water mark. Where there exist one (1) or more dwellings on waterfront lots located on one (1) or both sides of such lot, and where such dwellings are within one hundred (100) feet of such lot, the

required setback shall be the average setbacks of such existing dwellings measured from the ordinary high water mark. However, in no case shall such setback be less than fifty (50) feet.

Article 20 Section 20.1 Purpose

The purpose of this Article is to recognize that there are certain conditions concerning land uses that warrant specific exceptions, regulations, or standards in addition to the regulations contained elsewhere in this Ordinance, and to establish such exceptions, regulations, and standards. The following supplemental provisions apply to all uses and all zoning districts unless otherwise indicated.

Article 20: Section 20.12 Setback Exceptions for Residential Outdoor Living Areas (Patios, Decks, Unenclosed Porches, Etc.)

B. Standards: Outdoor living areas shall comply with the dwelling setback requirements of the District in which the dwelling is located, except that any portion of an outdoor living area that is in compliance with the following standards may be set back a minimum distance of five (5) feet from a side or rear lot line and forty (40) feet from a front lot line when located in a front yard, but in no case less than fifty (50) feet from the ordinary high water mark in the case of a waterfront lot:

1. Surface Height: The portion of the outdoor living area shall have a walking surface no greater than six (6) inches above the ground elevation along the side and rear lot lines most proximate to the outdoor living area. This surface height limitation shall not apply in the case where the outdoor living area surface is part of and accessible from a second story only.

The provisions in Article 20: Section 20.9 C (1-4) is strictly for the accessory use to the principal building and does not apply to the requirements for the setbacks for Outdoor Living Areas (Patios, Decks, Unenclosed Porches, Etc.). Also in Article 20: Section 20.1 Purpose clearly states, otherwise indicated elsewhere in this ordinance, and are indicated in Section 20.12 Outdoor Living Areas.

Ordinance 44 exists to promote public health, safety, and welfare including the conservation of property values and natural resources including wooded areas, wetlands, and water resources. Therefore under no circumstances is the Zoning Administrator permitted to make changes in this Ordinance, nor to vary the terms of this Ordinance.

If you feel an error has been made in the above decision, the Lincoln Township has indicated to waive the fee to appeal the Zoning Administrator's decision with the Zoning Board of Appeals. This will only be available for a limited time. Please visit our website http://www.lincolntwp.com/zba.htm for the Variance application and instructions.

Sincerely,
Mary "Jean" Abbott
Zoning Administrator | Enforcement Officer
Lincoln Township | Clare County, Michigan
T. +1 989.588.9841 ext.6 | D. + 989-588-9600
Email | zoning@lincolntwp.com

Purpose:
Resident filed for a zoning permit on date January 20, 2019, by Jeffery and Sandra Drew of 3870 Cottage Grove Court, Saginaw, MI 48604. In regard to a Zoning Permit Denial of a deck on property located in Lincoln Township, address, 1995 Bungo Tr. Oakdale Resort property number, 010-520-019-00.

The following is Jeffery and Sandra Drew's reason for Appeal:
Regarding: Appeal of Decision of the Zoning Administrator

We wish to appeal the decision of the Lincoln Township Zoning Administrator, dated December 6, 2018, denying our request for a zoning permit to construct a deck on our property at Lot 1, Block 1, of Oakdale Resort. The application for a zoning permit dated November 9, 2018, included all necessary supporting documentation for an accessory structure on our property referenced above in accordance with Section 20.9 Accessory Structures and Buildings. The proposed accessory structure meets all the requirements of this section.

There are so many conflicting sections in the Lincoln Township Zoning Ordinance, some of which Ms Abbott referenced in her letter of denial regarding the placement of decks and other structures, that judging from all the other accessory structures along Lake George, Section 20.9 is the proper way to address the permitting of our deck. We are certain that the requirements in Section 20.9 do pertain in our situation as a water front lot and supersede other sections of the zoning ordinance referenced by Ms Abbott. Our logic for this is laid out in our application letter of 9 November 2018, attached.

We refer to the Lincoln Township attorney's letter of February 2018 regarding the merging of our lots that was agreed to by Lincoln Township when the Lot 1, Block 1 Oakdale Resort lots were created. The township has treated the lots as a "total parcel" since that time.

For two years we tried to meet requirements and the spirit of the Lincoln Township Zoning Ordinance. We believe that construction of this modest 120 square foot

deck will not in any way diminish the health safety, or welfare of the township, nor will it negatively affect the township's natural resources. As all the other decks, docks, and other accessory structures along Lake George, it will contribute to and enhance the aesthetic and economic values of the community.

We are prepared to rebut each of the reasons for denial by Ms Abbott at the Zoning Board of Appeals hearing if this is necessary.

Jeffery and Sandra Drew

Chair Opens Public Hearing

Chair Carey declares the public hearing open and states the purpose: To hear the appeal of Denial of Zoning Permit dated November 9, 2018, by Jeffery and Sandra Drew

Correspondence & Communications to ZBA: Chair Carey read two letters; see attachment #1.

Presentation by Lincoln Township Zoning Administrator:

PURPOSE
Variance Request for: JEFFERY & SANDRA DREW
Property Address: Bungo Trial, Harrison, Ml 48625
Parcel Number: 010-520-019-00 (Oakdale Resort Lot 1 Blk 1 Oakdale Resort on Lake George)
I. PROJECT PROPOSAL
The proposed plot plan was to build steps leading to an outdoor living area (deck) located near the water front.
2. PROJECT DESCRIPTION
The construction description of the proposed walkway and deck/seating and roof is as follows:

- From the roadway steps leading to deck
- Fastened to a deck/seating area, which measures 10 ft. in length and 12 ft. in width, and 4 ft. in height, and 10 ft. from the high water mark.

3. DETERMINATION:
On November 28, 2018 a zoning application was received from Jeffery and Sandra Drew, for the property number 010-520- 019-00, lot #2, according to the property card. A site visit was performed, and in addition to researching Ordinance 44, it was determined the permit could not be issued for these following reasons:
Ordinance 44, Article 3 Supplemental Provisions

Article 3: Table 3-4 and Footnotes: Front Yard Setbacks: 50 ft.
Article 3: Footnotes for Table 3-4 Site Development Requirements
1. Other Standards and Regulations:
All uses shall comply with the site development requirements in Table 3-4, unless specified otherwise by this Ordinance. See also Article 12 - Off-Street Parking and Loading, Article 13 - Landscaping and Screening, Article 14 - Environmental Protection, Article 15 - Access and Private Roads, Article 16 - Signs, Article 18 - Standards and Regulations for Specific Land Uses, and Article 20 - Supplemental Provisions (including provisions addressing accessory structures), and other Articles as applicable.
5. Front Yard Setback Measurements and Special Water Setbacks:
b. Waterfront Lot: In the case of a waterfront lot, the front yard shall be that yard adjacent to the water body and the front yard setback shall be measured from the ordinary high water mark or, where a shoreline wall is present, from the face of the shoreline wall.
c. Ordinary High Water Mark Setback: In no case shall a structure be located closer than fifty (50) feet from the ordinary high water mark. Where there exist one (1) or more dwellings on waterfront lots located on one (1) or both sides of such lot, and where such dwellings are within one hundred (100) feet of such lot, the required setback shall be the average setbacks of such existing dwellings measured from the ordinary high water mark. However, in no case shall such setback be less than fifty (50) feet.
Article 20 Section 20.1 Purpose
The purpose of this Article is to recognize that there are certain conditions concerning land uses that warrant specific exceptions, regulations, or standards in addition to the regulations contained elsewhere in this Ordinance, and to establish such exceptions, regulations, and standards. The following supplemental provisions apply to all uses and all zoning districts unless otherwise indicated.
Article 20: Section 20.12 Setback Exceptions for Residential Outdoor Living Areas (Patios, Decks, Unenclosed Porches, Etc.)
A. Definition: For the purpose of this Section, "residential outdoor living area" shall be defined as an outdoor area that constitutes a structure as defined in this Ordinance and is designed or used for outdoor gathering, lounging, dining, and/or similar use, in association with a dwelling, constructed of wood, concrete, brick, stone, or similar surface or simulated surface.
B. Standards: Outdoor living areas shall comply with the dwelling setback requirements of the District in which the dwelling is located, except that any portion of an outdoor living area that is in compliance with the following standards may be set back a minimum distance of five (5) feet from a side or rear lot line and forty (40) feet from a front lot line when located in a front yard, but in no case less

than **fifty** (50) feet from the ordinary high water mark in the case of a waterfront lot:
1. Surface Height: The portion of the outdoor living area shall have a walking surface no greater than six (6) inches above the ground elevation along the side and rear lot lines most proximate to the outdoor living area. This surface height limitation shall not apply in the case where the outdoor living area surface is part of and accessible from a second story only.
A. Compliance with Natural Resource Buffer Area and Building/Lot Coverage Provisions: No modification of a required setback is permitted under this Section that results in noncompliance with the natural resource buffer area provisions of Section 14.8 and/or the maximum building coverage and lot coverage standards of Table 3-4 of Article 3.
In Section 20.1 Purpose states "otherwise indicated elsewhere in this ordinance" and is specified in Section 20.12 requirements for Outdoor Living Areas (i.e., patios, decks, unenclosed porches, Etc.). *Because* 20.9 C (1-4) is strictly for the accessory buildings "for the purpose of this section a building shall be considered an accessory building where such building is not structurally attached to the principal building by either shared wall construction or by a fully and structurally enclosed corridor or similar fully enclosed architectural feature." Which it does not apply to the proposed deck.

Presentation by the Petitioner:
Mr. Drew thanked the township and the board for allowing this second meeting and waiving the fee. They have been working at resolving the issues that came up at the first meeting. They feel that they have addressed both the contiguous issue and that the building falls within the ordinance allowances. He stated that the deck/accessory building meets the setbacks.

Mrs. Drew stated that when she contacted ZA Abbott that she followed all the steps required but when it was denied, she felt there was confusion about what was needed.

ZBA Members Comments & Questions: None

Public Comment: Chair Carey states: At this time I will allow public comments, only agenda items, (All comments shall be addressed to the Chair)
a. Each speaker shall give name and address.
b. A time limit may be imposed; I'm giving each speaker 5 minutes to speak.

Chair reserves the right to terminate a presentation or ask for summation if comments are repetitive.

Chair Carey recognized Daniel Vargas whose letter is attached. He made a supporting comment which reflected what he wrote in his letter.

Chari Carey recognized the Drews' attorney, Don Hamilton, who addressed the contiguous issue of the two properties. He referenced the statement from the township's attorney. He then addressed the ordinance concerning accessory structures and the deck being proposed. He said that the Drews' plans met all the requirements for such a structure. He reviewed the ordinance and found several contradictions in the setbacks in different instances. They looked at the ordinance and tried to work with them for their situation. This is an accessory building for the entire property.

Swanson asked about the 50 foot setback. The attorney answered that this is an accessory building which changes which setback is used.

Public Comment Closed by Chair: At 7:17 pm. Chair Carey stated that no more public comment may be made at this time.

Chair Carey reopened the public meeting at 7:25.

ZBA Members Finalize:
Prior to the final decision, Chair Carey explains that after we make and accept the motion, the applicant may wait to receive a final decision paper for court purposes. If the applicant does not wait around for the final decision paper, the decision will not be final until after the next ZBA meeting.

Then Chair Carey read the following statement to Mr. Drew:

"The following is not an interpretation; it is our research and findings in regard to the appeal.

According to the box you checked on your zoning permit, you are applying for an accessory building. According to your plot plan you are applying for a stairway and deck. According to your Appeal you are appealing the denial of the deck. We will start with Section 14.8 Natural Resource Buffer Areas, A-3, of Ordinance 44, Natural Feature Edge: The ordinary high water mark, except that in the case where there exists a bank along the natural feature, where the bank exceeds a slope

of ten percent (10%), the natural feature edge shall be considered the top of the bank or a line thirty (30) feet from the ordinary high water mark, whichever is less. Your slope is 27.78 %. Your Natural Feature Edge: The ordinary high water mark, is 30 feet from your seawall.

We will answer the Accessory building first. Section 20.9 Accessory Structures and Buildings, C-1, C 1 a and C 1 a 1) 2) and 3)
C Placement/Setbacks:
1. Prohibited in Front Yard: An accessory building is prohibited in a front yard except where there is compliance with the following.
a. Waterfront Lot. In the case of a waterfront lot, one (1) building accessory to a dwelling on the lot, shall be permitted in the front yard subject to the following limitations:
1) The accessory building shall not exceed one-hundred twenty (120) square feet in area and no roof overhangs shall exceed twelve inches (12”).
2) The accessory building shall not exceed ten (10) feet in height.
3) The accessory building shall be set back a minimum of ten (10) feet from the ordinary high-water mark and shall comply with all other accessory building setbacks specified in this Section.

The definition of Building: Any structure having a roof supported by columns, walls, or any other supports, which is used for housing, sheltering, storing, or enclosing persons, animals, or personal property, or carrying on business or other activities. This definition includes but is not limited to dwellings, garages, and greenhouses, and anything that exceeds sixty (60) sq. ft. in floor area or eight (8) feet in height, irrespective of the presence of permanent location on the ground or attachment to something having permanent location on the ground.

That said, in your case you could have an accessory building 10 feet from the Natural Feature Edge, which would be 40 feet from your seawall.

As for your deck application, the definition of deck is: Deck: An exterior floor system or platform, either attached or unattached to a building, and may be supported by posts, piers or other independent supports, the surface elevation of which at any point is higher than the surrounding ground elevation.
Structure: Anything constructed or erected, the use of which requires permanent location on the ground or attachment to something having such location on the ground.

Footnotes for Table 3-4, Site Development Requirements, paragraph 5-c: Ordinary High-Water Mark Setback: In no case shall a structure be located closer than fifty (50) feet from the ordinary high-water mark.

That said, your deck and stairway are considered structures and are required to be 50 feet from the ordinary high-water mark/ natural feature edge."

Engelhardt stated that this hearing is to look at the application of the zoning ordinances as the ZA applied them. The board has to support what is in the zoning and what the ZA decided. It would have been more appropriate to treat this as a variance which would have given them the ability to make suggestions. The board is going to request changes to the ordinances through the planning commission and the township board. This would not help you at this time but can help in the future.

Carey stated that they have requested the planning commission to address the stairway and deck issue for situations like the Drews.

Engelhardt said that there is nothing to say that they cannot put down something to make it even at ground level. Mrs. Drew said that they looked at this solution but it would make more erosion. She is concerned that water run off would create more problems the way the hill is.

Mr. Drew stated that the reason they appealed rather than making another request for variance was due to the negative response they met at the last hearing on March 14, 2018. Instead of erecting a building, they wish to just put in a deck.

Attorney Hamilton read section 20.19 and that it supports putting a structure in this area. He asked about existing structures and how they will be dealt with in the future. He feels that the definition of building is broad enough to include what the Drews are asking for to make the property safe and usable. It is no different than many similar structures that can be seen around the lake.

Mrs. Drew felt that they were working within the ordinances and doing what was being required but that they still were denied. It is confusing.

The discussion continued concerning safety issues and the reasons for stairs, landings, and a deck at the bottom.

Mr. Drew asked about the future of the stairs on the property. Chair Carey said that this would be up to ZA Abbott. At this time, he said, stairs are not allowed by

the current ordinance. He advised the Drews to communicate to the township board and planning commission to include stairs in the ordinance.

Motion: Carey made the following motion:

Regarding the appeal of the Zoning Administrators denial of the Zoning Permit. I entertain a motion that the Zoning Board of Appeals uphold the Zoning Administrators denial of the Zoning Permit filed on 11/8/2018, by Jeffery and Sandra Drew of 3870 Cottage Grove Court, Saginaw, MI 48604. In regard to a Zoning Permit Denial of a deck on property located in Lincoln Township, address, 1995 Bungo Tr. Oakdale Resort property number, 010-520-019-00
The reason for upholding the denial is we will start with Section 14.8 Natural Resource Buffer Areas, A-3, Natural Feature Edge: The ordinary high water mark, except that in the case where there exists a bank along the natural feature, where the bank exceeds a slope of ten percent (10%), the natural feature edge shall be considered the top of the bank or a line thirty (30) feet from the ordinary high water mark, whichever is less. Your slope is 27.78 %, your Natural Feature Edge: The ordinary high-water mark, is 30 feet from your seawall.
As for your deck application, the definition of deck is: Deck: An exterior floor system or platform, either attached or unattached to a building, and may be supported by posts, piers or other independent supports, the surface elevation of which at any point is higher than the surrounding ground elevation.
Structure: Anything constructed or erected, the use of which requires permanent location on the ground or attachment to something having such location on the ground.

That said your deck and stairway are considered structures and are required to be 50 feet from the ordinary high-water mark/ natural feature edge. Footnotes for Table 3-4, Site Development Requirements, paragraph 5c: Ordinary High-Water Mark Setback: In no case shall a structure be located closer than fifty (50) feet from the ordinary high-water mark.

Engelhardt seconded

Roll Call Vote:
Carey: **YES**; Engelhardt: **YES**; Swanson: **YES**;

Motion Passes: 3 Yeas; 0 Nays Appeal is Denied**.**

Public Comment: Mr. Hamilton asked for clarification concerning ordinance 20.9 and the definition of structure. He also asked if the Drews should ask for a variance for a building. Chair Carey stated that they would still have to abide by zoning ordinance 14.8 setback for such building. There was discussion about these ordinances being contradictory to each other. Mr. Hamilton feels that the Drew's request to apply 20.9 takes precedence over 14.8.

Chair Carey explained the reasoning behind the 14.8 natural high water mark ordinance and that it is put in for the protection of the lake from pollution.

Mr. Hamilton asked about a time limit and what the next step can be for the Drews. Chair Carey answered that they can appeal to court or reapply.

Adjournment: Engelhardt made a motion to adjourn; Swanson seconded. Motion passed with all in favor. Meeting adjourned at 7:56 pm.

Respectfully Submitted,

Cindy Engelhardt, Secretary

Attachment #1: Correspondence to Lincoln Township Zoning Board of Appeals

mcarey55@charter.net

From: clm@lincolntwp.com
Sent: Wednesday, March 6, 2019 4:44 PM
To: mcarey55@charter.net
Subject: FW: Appeal of Jeff and Sandra Drew

One for the Drew hearing Roger.

Carol

From: northernwood@charter.net <northernwood@charter.net>
Sent: Wednesday, March 6, 2019 1:47 PM
To: 'clm@lincolntwp.com' <clm@lincolntwp.com>
Subject: Appeal of Jeff and Sandra Drew

I have no issue with the Drews having an accessory building as long as it does not int
you have any questions, or comments, I can be reached at (727) 857-4060.

Sincerely,

Jodi Lee Wood
1998 Bungo Trail
Harrison, Michigan. 48626

Date: 3-1-19

To: Lincoln Township Zoning Board Appeals
175 Lake George Ave.
P.O. Box 239
Lake George, MI 48633

From: Daniel Vargas, 1864 Bungo Trail, Lake George

I am writing to you with respect to the variance request to be heard on the 13th of March regarding parcel **No. 010-520-019-00.**

I believe that if you grant the variance to the Drews to allow them to construct stairs and a deck that it will certainly be in the spirit of Lincoln Township's Zoning Ordinance. The intention of the regulations, is to prevent the construction of random utility buildings and garages on lots without residential homes on them by people not even necessarily home owners. In this case the lot in question is just a few feet south of their cottage lot line, across the street, which is allowed. The construction would allow for safe access to the water front.

The proposed construction of stairs and a deck would be the same as everyone else's on Lake George, it would be unfair to prevent the Drews from being able to use their property just as the rest of us do. The proposed deck and stairs would not visible from the roadway. I believe allowing this variance would enhance our community and would not cause any harm. I, am in full agreement to grant the variance to the Drew family.

Sincerely,

Daniel E. Vargas
1864 Bungo Trail
Lake George, Michigan
Cell (989) 798-4900
Home (989) 793-4811